

CITY OF BOULDER
CITY COUNCIL MEETING

Via Video Conferencing

Tuesday, December 1, 2020

MINUTES

1. Call to Order and Roll Call

Mayor Weaver called the meeting to order at 6:00 p.m.

Council Members Brockett, Friend, Joseph, Swetlick, Wallach, Yates and Young were present virtually; Council Member Nagle absent

- A. COVID Public Health Briefing/Response Fire Update
- B. Public Health Order Compliance, Education, and Enforcement

COUNCIL MEMBER SWETLIK MADE A MOTION TO AMEND THE AGENDA TO ADD ITEM 8B BIAS AND MICROAGGRESSION TRAINING REMINDER. COUNCIL MEMBER WALLACH SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 7:44 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

2. Open Comment

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment began at 7:46 p.m.

- 1. Louise Chawla spoke about Xcel franchise results
- 2. Chelsea Castellano spoke about Ordinance 8403
- 3. Amber Noble spoke about homelessness in Boulder
- 4. Evan Ravitz spoke about Ordinance 8403
- 5. McKaeli Garner spoke about outdoor camping ban
- 6. Paul Culnan spoke about global warming goals
- 7. Patrick Murphy spoke about climate change and carbon reduction
- 8. Lynn Segal spoke about demolition's contribution to property value
- 9. Alex O'Connor spoke about homelessness
- 10. Riley Mancuso spoke about homelessness and the camping ban
- 11. Ella Fiske spoke about homelessness in Boulder
- 12. Julie Zahniser spoke about City Manager job profile regarding climate change

13. Tanvi Kapoor spoke about sustainable community development
14. Chris Hoffman spoke about Xcel franchise
15. Holly Carlson spoke about encampments and the effects on our environment and tourism

Open Comment closed at 8:19 p.m.

3. Consent Agenda

- A. Consideration of a motion to authorize the city manager to execute an Intergovernmental Agreement with the University of Colorado concerning the Williams Village Recirculation System
- B. Introduction, first reading and consideration of a motion to order published by title only Ordinance 8403 Amending Section 13-1-4, B.R.C. 1981, "Initiatives and Referendum," Clarifying Election Procedures for Direct Legislation, Including Initiatives, Referenda and Recall; and adding a new Section 13-1-7, "Online Petitions," Implementing the Charter Provision Allowing for Electronic Signatures on Petitions for Initiatives, Referenda And Recalls; and Setting Forth Details in Relation Thereto
- C. Second reading and consideration of a motion to adopt Ordinance 8438 approving supplemental appropriations to the 2020 Budget
- D. Second reading and consideration of a motion to order published by title only Ordinance 8435 extending to December 31, 2021, a moratorium imposed by Ordinance 8253 and amended by Ordinance 8392 on the acceptance and processing of applications for drilling permits on City of Boulder open space properties, and for any city permits or use review of new mining industry uses involving oil and gas extraction within the city and on city owned properties outside of the city, to allow time for the city to develop rules and regulations governing such uses; and setting forth related details.
- E. Second reading and consideration of a motion to adopt Ordinance 8419 approving and granting a franchise between the City of Boulder, Colorado to Public Service Company of Colorado, its successors and assigns, to furnish, sell, and distribute gas and electricity to the city and to all persons, businesses, and industries within the city and the right to acquire, construct, install, locate, maintain, operate, and extend into, within, and through said city all facilities reasonably necessary to furnish, sell, and distribute gas and electricity within the city and the right to make reasonable use of all streets, public easements and other city property as herein defined as may be necessary; and setting forth related details.
- F. Second reading and consideration of a motion to adopt Ordinance 8434 amending Title 3, "Revenue and Taxation," B.R.C. 1981, to allow electronic notice to taxpayers, increase the project amount for construction use tax reconciliation, and

relocating general provisions to Chapter 3-17 “General Provisions for Tax Compliance”; and setting forth related details.

- G. Third reading and consideration of a motion to adopt Ordinance 8431 designating the building and a portion of the property at 1770 13th St. as an individual landmark per Section 9-11-5 of the Boulder Revised Code, 1981

COUNCIL MEMBER YATES MADE A MOTION TO APPROVE THE CONSENT AGENDA ITEMS 3A-3G WITH THE FOLLOWING AMENDMENT TO ITEM 3E. THE CITY COUNCIL MOVES TO DECLARE THAT IF THE COLORADO PUBLIC UTILITIES COMMISSION REQUIRES ANY MATERIAL CHANGES OR AMENDMENTS TO THE FRANCHISE AGREEMENT AS PART OF ITS APPROVAL PROCESS, ANY SUCH CHANGES OR AMENDMENTS WILL REQUIRE SUBSEQUENT VOTER APPROVAL AS REQUIRED BY CITY CHARTER SECTIONS 108 AND 114. COUNCIL MEMBER WALLACH SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 8:35 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

4. Call-Up Check-In

- A. Call-up Consideration: Application to Rename Wonderland Lake to the Wonderland Lake Wildlife Sanctuary

No action

5. Public Hearings

- A. Consideration of a Site Review Amendment to the Twenty Ninth Street Shopping Center to adaptively reuse and redesign the existing Macy’s Department Store located at 1900 28th Street in the Business – Regional 1 (BR-1) zoning district as an office and retail building

COUNCIL MEMBER YATES MADE A MOTION TO TAKE THIS ITEM BACK TO CAC TO RESCHEDULE IT FOR THE JANUARY 5, 2021 REGULAR COUNCIL MEETING. COUNCIL MEMBER FRIEND SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 8:52 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

- B. Consideration of a motion to approve the election returns from the 2020 Coordinated Municipal Election held on November 3, 2020.

COUNCIL MEMBER YOUNG MADE A MOTION TO CONVENE AS THE GENERAL CANVASSING AND ELECTION BOARD FOR THE CITY OF BOULDER COORDINATED MUNICIPAL ELECTION HELD ON NOVEMBER 3, 2020. COUNCIL MEMBER FRIEND SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 8:52 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

The public hearing opened at 8:59 p.m. and the following spoke regarding approving the 2020 Coordinated Municipal Election:

No one signed up to speak

The public hearing closed at 8:59 p.m.

COUNCIL MEMBER WALLACH MADE A MOTION TO APPROVE THE ELECTION RETURNS FOR THE CITY OF BOULDER COORDINATED MUNICIPAL ELECTION HELD ON NOVEMBER 3, 2020, TO ADJOURN FROM THE GENERAL CANVASSING AND ELECTION BOARD AND TO RECONVENE AS THE BOULDER CITY COUNCIL. COUNCIL MEMBER SWETLIK SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 9:00 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

- C. Second reading and consideration of a motion to adopt Ordinance 8439 amending Chapter 3-13, "Utility Occupation Tax," B.R.C. 1981, to implement the voter approved changes presented in Ordinance 8417 to amend, repurpose and extend the Utility Occupation Tax; and setting forth related details.

The public hearing opened at 9:16 p.m. and the following spoke regarding Ordinance 8439 amending Chapter 3-13, "Utility Occupation Tax," B.R.C. 1981, to implement the voter approved changes presented in Ordinance 8417 to amend, repurpose and extend the Utility Occupation Tax; and setting forth related details:

1. Lynn Segal
2. Paul Culnan
3. Leslie Glustrom

The public hearing closed at 9:21 p.m.

COUNCIL MEMBER BROCKETT MADE A MOTION TO MOTION TO AMEND AND PASS ON SECOND READING ORDINANCE 8439 AMENDING SECTION 1 BY ADDING A NEW SUBSECTION 3-13-1(D) AS FOLLOWS:

(D) USAGE OF FUNDS: FUNDS SHALL BE USED, INCLUDING BUT NOT LIMITED TO THE FOLLOWING PURPOSES:

(1) PROVIDING ENERGY-RELATED ASSISTANCE TO DISADVANTAGED MEMBERS OF THE COMMUNITY, INCLUDING SUPPORT FOR UTILITY BILL PAYMENTS AND ACCESS TO RENEWABLE ENERGY;

(2) IMPROVING SYSTEM RELIABILITY AND MODERNIZING, AND SUPPORTING CLEAN ENERGY-RELATED BUSINESSES, INCLUDING, WITHOUT LIMITATION, NEW APPROACHES IN ELECTRIFICATION OF BUILDINGS AND TRANSPORTATION, ENHANCEMENT OF RESILIENCE;

(3) IMPLEMENTING A PARTNERSHIP AGREEMENT WITH PUBLIC SERVICE COMPANY OF COLORADO; AND

(4) INCREASING ACCESS TO ENERGY EFFICIENCY AND RENEWABLE ENERGY SOLUTIONS.

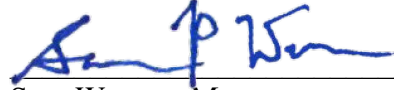
COUNCIL MEMBER WALLACH SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 9:24 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

6. Matters from the City Manager
 - A. Police Strategic Action Plan and Crime Update
No action
8. Matters from the City Attorney
9. Matters from the Mayor and Members of Council
 - A. City Manager Search Update - Job Profile Feedback
No action
 - B. Bias and Microaggression Training Reminder
No action
9. Discussion Items
10. Debrief
11. Adjournment

THERE BEING NO FURTHER BUSINESS TO COME BEFORE COUNCIL AT THIS TIME, BY MOTION REGULARLY ADOPTED, THE MEETING WAS ADJOURNED ON DECEMBER 1, 2020 AT 10:45 P.M.

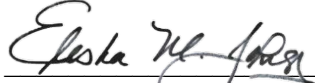
Approved this 15TH day of December 2020.

APPROVED BY:



Sam Weaver, Mayor

ATTEST:

A handwritten signature in black ink, appearing to read "Elesha Johnson", written over a horizontal line.

Elesha Johnson, City Clerk